

JUDGE GRIESA

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

04 CV 1900

DAVID SINGLETON,

Docket No.

Plaintiff,

-against-

**COMPLAINT AND JURY
DEMAND**

CITY OF NEW YORK, POLICE COMMISSIONER
RAYMOND W. KELLY, COMMANDING OFFICER
INSPECTOR LARRY W. MIKUNEN, POLICE OFFICER
MANUEL MUNOZ, SHIELD #1147, POLICE
OFFICER FAWAD KHAN, SHIELD #30952, JOHN
DOE ## 1-10,

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of his rights secured by 42 USC §1983, the First, Fourth, and Fourteenth Amendments to the United States Constitution, and the laws and Constitution of the State of New York.

2. The claim arises from a March 9, 2003 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to, inter alia, false arrest, malicious prosecution, assault, battery, and false imprisonment for acts of which plaintiff was innocent.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action is brought pursuant to 28 USC §1331, 42 USC §1983, and the First, Fourth, and Fourteenth Amendments to the United States Constitution. Pendent party jurisdiction and supplementary jurisdiction over plaintiff's state law claims is asserted.

5. The amount in controversy exceeds \$75,000.00 excluding interest and costs.

6. Venue is laid within the United States District Court for the Southern District of New York in that Defendant City of New York is located within and a substantial part of the events giving rise to the claim occurred within the boundaries of the Southern District of New York.

PARTIES

7. Plaintiff is a citizen of the United States and at all times here relevant resided in the County of Kings, City and State of New York.

8. The City of New York is a municipal corporation organized under the laws of the State of New York.

9. New York Police Commissioner Raymond Kelly ("the Commissioner") was at all times here relevant the Police Commissioner of the Commissioner of the New York City Police Department, and, as such, was a policy maker with respect to training, supervision, and discipline of NYPD officers, including the other individual defendant. The Commissioner is sued in his individual and official capacities.

10. Commanding Officer Inspector Larry W. Nikunen ("Inspector Nikunen") was at all times here relevant the Commanding Officer of the 90th Precinct and, as such, was a policy maker with respect to training, supervision, and discipline of NYPD officers within the precinct,

including the other individual defendants. Inspector Nikunen is sued in his individual and official capacities.

11. All other individual defendants are members of the NYPD, and are sued in their individual and official capacities.

12. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

NOTICE OF CLAIM

13. Within 90 days of the events giving rise to this claim, as well as of their termination in plaintiff's favor, plaintiff filed written Notice of Claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of that notice, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

14. On or about March 9, 2003, at approximately 3:40 AM, plaintiff was inside of a night club located at 760 Bedford Avenue, Brooklyn, New York, when police officers entered the premises and battered plaintiff and sprayed him in the face with mace.

15. The police officers stopped and searched the plaintiff without reasonable suspicion, probable cause or with any reasonable belief that the officers were in danger. The officers found nothing unlawful or dangerous in the possession of the plaintiff, and at no time was the plaintiff engaging in any unlawful conduct. Police officers then arrested plaintiff without probable cause and battered him in the course of and after the arrest.

16. The plaintiff was denied medical attention for his injuries caused by the police officers' misconduct, despite repeated requests.

17. The plaintiff verbally protested against the police officers misconduct. In retaliation, the police officers battered and arrested the plaintiff.

18. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events.

19. During all of the events above described, defendants acted maliciously and with intent to injure plaintiff.

20. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

a. Violation of his constitutional rights to freedom of speech under the First Amendment to the United States Constitution;

b. Violation of his rights to freedom of speech pursuant to Article 1, Section 8 of the New York State Constitution;

c. Violation of his rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution to be free from an unreasonable search and seizure of his person;

d. Violation of his New York State constitutional rights under Article 1, Section 12 to be free from an unreasonable search and seizure;

e. Violation of his right to Due Process of Law under the 14th Amendments to the United States Constitution;

f. Violation of his New York State Constitutional right under Article 1, Section 6 to Due Process of Law;

- g. Physical pain and suffering;
- h. Emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, financial loss, and property damage;
- i. Loss of liberty;
- j. Attorney's and court fees.

**FIRST CAUSE OF ACTION
(ASSAULT)**

- 21. Paragraphs one through 20 are here incorporated by reference.
- 22. Upon approaching plaintiff, and arresting him, defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
- 23. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under 42 USC §1983 and the New York State Constitution.
- 24. Plaintiff was damaged by defendants' assault in the amount of Three Hundred Fifty Thousand (\$350,000.00) Dollars.

**SECOND CAUSE OF ACTION
(BATTERY)**

- 25. Paragraphs one through 24 are here incorporated by reference.
- 26. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him.
- 27. Defendants used excessive and unnecessary force with plaintiff.
- 28. Defendants have deprived plaintiff of his civil, constitutional and statutory rights

and have conspired to deprive him of such rights and are liable to plaintiffs under 42 USC §1983 and the New York State Constitution.

29. Plaintiff was damaged by the battery of the defendants in the amount of Three Hundred Fifty Thousand (\$350,000.00) Dollars.

THIRD CAUSE OF ACTION
(FALSE ARREST AND ILLEGAL IMPRISONMENT)

30. Paragraphs one through 29 are here incorporated by reference.

31. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

32. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under 42 USC §1983 and the New York State Constitution.

33. As a result of the false arrest, imprisonment, and deprivation of liberty, plaintiff was damaged in the sum of Three Hundred Fifty Thousand (\$350,000.00) Dollars.

FOURTH CAUSE OF ACTION
(MUNICIPAL LIABILITY)

34. Paragraphs one through 33 are here incorporated by reference.

35. Defendant New York City is liable for the damages suffered by plaintiff as a result of the conduct of its employees, agents, and servants and the others whose names are currently unknown.

36. Defendant New York City knew or should have known of their employees', agents, or servants' propensity to engage in the illegal and wrongful acts detailed above.

37. The aforesaid event was not an isolated incident. The City of New York has been aware for some time (from lawsuits, notices of claim and complaints filed with the Civilian

Complaint Review Board) that many of its police officers are insufficiently trained on the proper basis for an arrest, and the observations required to support probable cause. The City is further aware that such improper training has often resulted in a deprivation of civil rights. The City of New York has also been aware for some time (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board) that many of its police officers are insufficiently trained on the appropriate use of force. The City is further aware that such improper training has often resulted in the unnecessary and wanton use of excessive force. Despite such notice, the City has failed to take corrective action. These failures caused the officers in the present case to violate the plaintiff's civil rights.

38. The City of New York knew or should have known that the officers who caused plaintiff injury on March 9, 2003 had a propensity for the type of conduct that took place in this case. Nevertheless, the City of New York failed to take corrective action.

39. Defendant New York City has failed to take the steps to discipline, train, supervise or otherwise correct the improper, illegal conduct of the individual defendants in this and in similar cases involving misconduct.

40. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of New York City to the constitutional rights of persons within New York City, and were the cause of the violations of plaintiff's rights here alleged.

41. Defendant City of New York has damaged plaintiff by its failure to properly train, supervise, discipline, review, remove, or correct the illegal and improper acts of its employees, agents or servants in this and in similar cases involving police misconduct.

42. Plaintiff has been damaged as a result of the wrongful, negligent and illegal acts of defendant New York City in the amount of Three Hundred Fifty Thousand (\$350,000.00)

dollars.

FIFTH CAUSE OF ACTION
(42 USC § 1983)

43. Paragraphs one through 42 are here incorporated by reference.

44. Defendants have deprived plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC § 1983 and the New York State Constitution.

45. Defendants' conduct deprived plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. Defendants' conduct was also motivated by a desire to punish Plaintiff for his exercise of speech protected by the First Amendment to the United States Constitution. Further, defendants' conduct deprived plaintiff of his right to due process of law, pursuant to the 14th Amendment of the United States Constitution.

46. Plaintiff has been damaged as a result of defendants' wrongful acts in the amount of Three Hundred Fifty Thousand (\$350,000.00) dollars.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally, as follows:

- A. In favor of plaintiff in the amount of Three Hundred Fifty Thousand (\$350,000.00) dollars for each of plaintiff's Causes of Action;
- B. Awarding plaintiff punitive damages in the amount of Three Hundred Fifty Thousand (\$350,000.00) dollars for each of plaintiff's Causes of Action;
- C. Awarding plaintiff reasonable attorneys' fees, costs and disbursements of this action; and
- D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

DATED: Brooklyn, New York
March 7, 2004

TO: New York City
Corporation Counsel Office
100 Church Street, 4th floor
New York, NY 10007

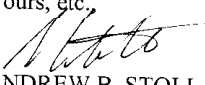
Police Commissioner Raymond W.
Kelly
1 Police Plaza
Room 1406
New York, NY 10038

Inspector Larry Nikunen
90th Precinct
211 Union Avenue
Brooklyn, NY 11211

Police Officer Manuel Munoz,
shield #1147
90th Precinct
211 Union Avenue
Brooklyn, NY 11211

Police Officer Fawad Khan, shield
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Yours, etc.


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